

PROFESSIONAL SERVICES AGREEMENT

THIS PROFESSIONAL SERVICES AGREEMENT, dated January 10, 2024, is by and between Initech Services Group (the “Contractor”) and Keystone Procurement LLC (the “Company”), and sets forth the terms under which Contractor will provide certain services.

1. Compensation

Company shall compensate Contractor on a cost-plus basis, equal to Contractor’s documented direct costs plus a fixed margin of fifteen percent (15%), invoiced monthly.

2. Payment

Payment of each properly submitted invoice shall be due sixty (60) days after Company’s receipt thereof.

3. Annual Minimum

Company shall engage Contractor for services representing not less than \$400,000 in fees during each twelve-month period of the engagement.

4. Term

The term of this engagement shall be forty-eight (48) months from the date first written above, and shall not renew automatically; any continuation beyond the term requires a new written agreement executed by both parties.

5. Termination for Convenience

Subject to Section 11, either party may terminate this Agreement for convenience upon one hundred twenty (120) days prior written notice.

6. Services

Contractor shall perform the services described in each statement of work agreed by the parties from time to time.

The parties acknowledge that the services are integral to Company’s operations and that continuity is essential during the initial ramp-up phase.

11. Restrictions on Termination

Notwithstanding Section 5, the right to terminate for convenience shall not be exercisable during the first eighteen (18) months following the Effective Date, during which period this Agreement may be terminated only for material uncured breach.

12. Limitation of Liability

The aggregate liability of either party under this Agreement shall in no circumstances exceed \$150,000, regardless of the form of action.

13. Indemnity

Company shall indemnify and hold harmless Contractor, its officers and employees, from and against any claims arising in connection with the engagement. No corresponding indemnity is provided by Contractor.

20. Miscellaneous

Headings are for convenience only. This Agreement constitutes the entire agreement between the parties. The validity, interpretation, and performance of this Agreement shall be governed in all respects by the laws of the State of Texas. If any provision is held invalid, the remainder shall continue in effect.